

NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND

Ref: EH/JO/2026/003 | 01 July 2026

TO:

The Honourable Judge President, Labour Court of South Africa (Cape Town)

The Honourable Judge President, High Court of South Africa (Western Cape Division)

Director Ruanne David, Office of the Chief Justice (Director of Court Operations)

The Registrar(s), Labour Court & High Court (Western Cape)

DATE: 01 July 2026
FROM: Wilbur William Matthee | EthicHawks Forensic Governance & Compliance Consultancy
REF: EH/JO/2026/003 | EthicHawks Final Closure Report (23 June 2026)
SUBJECT: **FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND – SYSTEMIC FAILURE TO EXECUTE STATUTORY DUTIES**

1. INTRODUCTION

This notice serves as a formal declaration of administrative default. Despite prior escalations, specifically the Formal Escalation (Ref: EH/JO/2026/003), this office remains in receipt of zero substantive responses from the respective Registrars or the offices of the Judge Presidents regarding the matters enumerated in the EthicHawks Final Closure Report (23 June 2026).

2. THE DEFAULT

The Registry's failure to acknowledge filings, specifically the Unilateral Pre-Trial Minute in Case No: 2026-083299, and the failure to provide the requested audio recordings, constitutes a functional denial of the right of access to courts as guaranteed under Section 34 of the Constitution of the Republic of South Africa.

NON-DISCRETIONARY DUTY	Under Labour Court Rule 16(1), the Registrar's duty to enrol matters is mandatory and non-discretionary. The Registrar has no authority to substitute procedural preference for the imperative wording of the Rules.
SYSTEMIC FAILURE	The "ghost notifications" and admitted system challenges, as acknowledged by Director Ruanne David on 22 June 2026, do not absolve the Registry of its constitutional duty to ensure a functional, fair, and accessible judicial process.

3. FINAL DEMANDS

Given the ongoing silence and the absence of any substantive engagement, this notice provides a final period of five (5) court days from the date of receipt for the following actions to be completed:

1. ENROLMENT: Immediate enrolment of Case No: 2026-077546 on the Unopposed Roll for default judgment in terms of Labour Court Rule 16(1).
2. ACKNOWLEDGMENT: Written confirmation of receipt and placement of the Unilateral Pre-Trial Minute (Case No: 2026-083299) before a Judge for case management directives.
3. DISCLOSURE: Provision of the official audio recordings for the High Court proceedings of 25 March 2026 (Case No: 2026-066952) and 16 April 2026 (Case No: 2026-086906), as requested on 26 March 2026 and 03 June 2026 respectively.
4. RECTIFICATION: Substantive written response to the Formal Escalation (EH/JO/2026/003) from the offices of the respective Judge Presidents.

⚠ FIVE-DAY DEADLINE

All demands must be fulfilled within five (5) court days of receipt of this notice.
Non-compliance will be treated as an admission of institutional obstruction.

4. CONSEQUENCES OF NON-COMPLIANCE

Failure to rectify these administrative defaults within the stipulated five-day period will be treated as an admission of institutional obstruction. The following escalations will proceed immediately and without further notice:

- JUDICIAL SERVICE COMMISSION (JSC): Formal complaint regarding the dereliction of administrative and judicial oversight duties by court officials and the Judge Presidents of both the Labour Court and High Court (Western Cape Division).
- PARLIAMENTARY PORTFOLIO COMMITTEES: Presentation of the Consolidated Forensic Oversight Report to the Portfolio Committee on Justice and Constitutional Development, the Portfolio Committee on Employment and Labour, and the National Speaker of Parliament, documenting the failure of the justice system to provide basic administrative due process to a self-represented litigant.
- INFORMATION REGULATOR: Formal complaint reporting the POPIA breaches and data integrity failures, including the unauthorised disclosure of third-party judicial documents (Armstrong v City of Cape Town) and the "ghost notification" system failures, as documented in the Final Closure Report.

This list of escalations is not exhaustive. Further referrals to the South African Human Rights Commission (Section 9 and Section 34 violations) and the Legal Practice Council (conduct of Deneys Reitz Inc.) will proceed in parallel.

GOVERN YOURSELVES ACCORDINGLY.

CERTIFICATE OF SERVICE

I, Wilbur William Matthee, do hereby confirm that this Notice has been transmitted via electronic mail to the offices of the aforementioned parties on 01 July 2026. A digital log of transmission, including timestamps and read receipts, is maintained within the EthicHawks audit trail.

Recipient	Email Address
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The Honourable Judge President, Labour Court	(Via Director David – RDavid@judiciary.org.za)
The Honourable Judge President, High Court	(Via Director David – RDavid@judiciary.org.za)
Director Ruanne David (Court Operations)	RDavid@judiciary.org.za
Registrar Farzaana Ismail	FIsmail@judiciary.org.za
Registrar Tsakani Soundy	TSoundy@judiciary.org.za
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Wilbur William Matthee

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Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct
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END OF NOTICE
